



U.S. Department
of Transportation

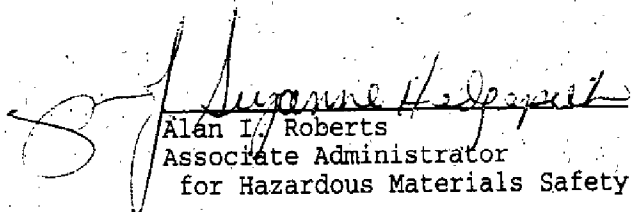
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9953 (EXTENSION)
FIRST REVISION December 27, 1994

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9953 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to February 28, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 17 1995

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

North Star Transport, Inc.
St. Paul, MN

January 25, 1995

National Starch and Chemical Company
Bridgewater, NJ

March 1, 1995

Jevic Transportation, Inc.
Delanco, NJ

March 8, 1995

Transport Corporation of America, Inc.
Eagan, MN

March 9, 1995

CMI Transportation, Inc.
White Pigeon, MI

March 27, 1995



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9953
(FIRST REVISION)

1. North Star Transport, Inc., Eagan, MN, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer or transport packages prescribed herein of Class 3 liquids and/or Division 2.1 gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments of flammable liquids and/or flammable gases in temperature controlled equipment and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on an application from North Star Transport, Inc. dated April 27, 1993, submitted in accordance with 49 CFR 107.105. (See appendix a of this example)
3. HAZARDOUS MATERIALS (Descriptor and class). Class 3 materials or Division 2.1 gases.
4. PROPER SHIPPING NAME (49 CFR 172.101). Specific or generic name, as appropriate.
5. REGULATION AFFECTED. 49 CFR 177.834(1)(2)(i).
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Conditions under which shipments may be made:
 - a. Materials in the classes identified above, properly packaged, may be shipped by highway vehicles equipped with heating apparatus operated by propane fuel. Any electrical apparatus in the lading space must be of non-sparking or explosion proof type. There must be no combustion apparatus in the lading space, and no arrangement for return of air from the lading space to any combustion apparatus. The heating system (including a required thermostatically controlled blower) must be such that no part of the lading will be heated to over 130°F. and must conform to 49 CFR 393.77.
 - b. The heating unit and the component parts must be as shown in the SAFETEC Operating Manual title "Propane Cargo Heater, Model #101, External Mount" which was submitted with the application. The heater unit and its fuel supply must be externally mounted on truck or trailer, must retain combustion in a sealed combustion chamber, must utilize outside air for combustion (air from cargo space cannot be used for combustion) and gases from combustion must be exhausted to the outside of truck or trailer.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle when transporting the above classed hazardous materials under the provisions of this exemption.

b. Each heating system identified in paragraph 7.b. must be plainly and durably marked "DOT-E 9953", however, the shipping paper notation required by 49 CFR Part 107, Appendix (B(2) and 172.203 (a) is waived.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

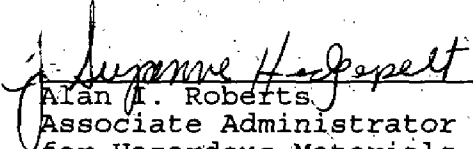
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. May 31, 1995.

Issued at Washington, D.C.

DEC 27 1994


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, DC 20590. Attention DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FAA, FHA, FRA



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

JAN 16 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9953
(SECOND REVISION)

1. North Star Transport, Inc., Eagan, MN, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer or transport packages prescribed herein of Class 3 liquids and/or Division 2.1 gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes shipments of flammable liquids and/or flammable gases in temperature controlled equipment and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from North Star Transport, Inc. dated December 9, 1996, submitted in accordance with 49 CFR 107.109. (See appendix A of this exemption).

3. HAZARDOUS MATERIALS (Descriptor and class). Class 3 materials or Division 2.1 gases.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific or generic name, as appropriate.

5. REGULATION AFFECTED. 49 CFR 172.203(a) and 177.834(1)(2)(i).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Conditions under which shipments may be made:

a. Materials in the classes identified above, properly packaged, may be shipped by highway vehicles equipped with heating apparatus operated by propane fuel. Any electrical apparatus in the lading space must be of non-sparking or explosion proof type. There must be no combustion apparatus in the lading space, and no arrangement for return of air from the lading space to any combustion apparatus. The heating system (including a required thermostatically controlled blower) must be such that no part of the lading will be heated to over 130°F. and must conform to 49 CFR 393.77.

JAN 16 1997

b. The heating unit and the component parts must be as shown in the SAFETEC Operating Manual title "Propane Cargo Heater, Model #101, External Mount" which was submitted with the application. The heater unit and its fuel supply must be externally mounted on truck or trailer, must retain combustion in a sealed combustion chamber, must utilize outside air for combustion (air from cargo space cannot be used for combustion) and gases from combustion must be exhausted to the outside of truck or trailer.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle when transporting the above classed hazardous materials under the provisions of this exemption.

b. Each heating system identified in paragraph 7.b. must be plainly and durably marked "DOT-E 9953", however, the shipping paper notation required by 49 CFR 172.203(a) is waived.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws 49 U.S.C. Section 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

JAN 16 1997

Continuation of 2nd Rev. of DOT-E 9953

Page 3

11. EXPIRATION DATE. December 31, 1998.

Issued at Washington, D.C.

for Alan I. Roberto
Associate Administrator
for Hazardous Materials Safety

1/16/97
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, DC 20590. Attention DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FAA, FHA, FRA